



MINI-GRID REGULATIONS
REGULATION NO: PSERC/R002

2026

NOTICE OF PROPOSED ESTABLISHMENT OF MINIGRID REGULATIONS: INVITATION FOR COMMENTS

PLATEAU STATE ELECTRICITY REGULATORY COMMISSION

In exercise of the powers conferred on the Plateau State Electricity Regulatory Commission (“PSERC” or the “Commission”) by **section 22** of Plateau State Electricity Law 2024, and other enabling powers, the Commission makes these Regulations for mini-grids:

ARRANGEMENT OF SECTIONS

CHAPTER-I

General

1. Short Title
2. Commencement
3. Interpretation
4. Application and Scope of the Regulations

CHAPTER-II

Classification and Delineation of Mini-Grids

5. Types of Mini-Grids
6. Geographical Delineation of Mini-Grid Service Areas

CHAPTER-III

Registration, Permit, and Mandatory Conditions

7. Permits for Isolated Mini-Grids
8. Registration of Isolated Mini-Grids
9. Interconnected Mini-Grids up to **10MW** of Installed Generation Capacity
10. Application Procedure for a Mini-Grid Permit
11. Amendments and Portfolio Filing for a Mini-Grid
12. General Obligations of the Mini-Grid Permit Holder
13. Accounts of the Mini-Grid Permit Holder
14. Inspection of accounts for Tariff Review and Determination of Depreciated Value
15. Transfer of the Mini-Grid Permit or Business

CHAPTER-IV

Technical, Operational, and Transitional Requirements for Mini-Grids

16. Design, Construction, Operation, and Maintenance of Mini-Grids Operated Under a Permit
17. Quality of service
18. Health and Safety
19. Environmental protection
20. Customer Connection, Metering, and Billing
21. Grid Arrival, Transition, and Compensation
22. Monitoring, Evaluation, and Reporting

CHAPTER-V

Tariffs and Commercial Arrangements

23. Determination of Tariffs and Other Charges
24. Commercial Arrangements

CHAPTER-VI

Miscellaneous

25. Site Exclusivity for Project Development
26. Rectification of Non-Compliance with a Mini-Grid Permit.
27. Proceedings before the Commission
28. Customer Complaint Procedure

- 29. Dispute resolution
- 30. Amendment or Repeal

SCHEDULES AND GUIDELINES

Schedule 1: Agreement Form for an Exclusive Project Development Period at a Site for a Mini-Grid

Form A – Supplementary Exclusivity Period Request Form

Schedule 2: Registration Form for Isolated Mini-Grids

Schedule 3: Application Form for Mini-Grid permit

Schedule 4: Monitoring and Evaluation Reporting Template

Schedule 5: Application proceedings and Timelines for Registration and mini-grid permit

Schedule 6: Health and safety guidelines

Schedule 7: Minimum Technical Requirements and Standard Compliance Template Registered Mini-Grids

Schedule 8: Methodology for Determination of Network Asset Use Fee, Cost of Energy, and the Default Export Settlement for Interconnected Mini-Grids

Schedule 9: Complaints Resolution Mechanism

Schedule 10: Tripartite Agreement Template for Interconnected Mini-Grid

Schedule 11: Contract template for Isolated Mini-Grid

Schedule 12: Mini-Grid customer contract template

Schedule 13: Asset handover and compensation confirmation sheet

Schedule 14: Mini-Grid Tariff Model

Schedule 15: Standard Technical Conditions, Hosting Capacity Information, and Short-Form System Impact Study Confirmation for Eligible Interconnected Solar **PV** and Battery Mini-Grids.

CHAPTER-I GENERAL

1. Short Title

These Regulations may be cited as the **Mini-Grid Regulations, 2026**.

2. Commencement

1. These Regulations shall come into effect on the date it is approved by a resolution of the Commission.
2. The Regulations shall be signed by the Managing Director/CEO of the Commission, who shall cause the seal of the Commission to be affixed thereon.

3. Interpretation

In these Regulations, unless the context otherwise requires –

“Act” means the Electricity Act 2023.

“Approved Operating Mode” means the operating mode approved for the project under **Schedule 15** to these Regulations, being Non-Export, Limited Export, or Managed Export, as recorded in **Annex 7**.

“Business Rules” means the Plateau State Electricity Regulatory Commission (Business Rules of the Commission) Regulations, 2026, or any subsequent amendment thereof.

“Commission” means the Plateau State Electricity Regulatory Commission.

“Community” means a group of people within the same geographical location organised under a recognised local leadership structure or a legally recognised corporate entity, and in both cases, capable of entering into contracts and being capable of suing and being sued.

“Connected Community” means a defined community of end-use customers in a designated geographical location connected to the distribution network of a distribution licensee.

“Connection Point” means an entry or an exit point on a distribution network.

“Distributed Generation” means electricity generation from various small-scale, decentralized sources connected to the mini-grid or distribution system or directly to the point of use.

“Distribution Code” means the code and guidelines approved by the Commission for electricity distribution systems in Nigeria.

“Distribution Company” or **“Distribution licensee”** means a holder of a Distribution Licence who operates a distribution network that is connected to the transmission system operated by the system operation licensee.

“Distribution Licensee” means a holder of a distribution licence issued by the Commission.

“Distribution Network” means any connection of cables, service lines, and overhead lines, electrical apparatus/equipment, and having a design voltage of **33kV** and below used to transport electric power on a distribution system.

“Environmentally sensitive area” means an area designated or classified as such by the competent environmental authority under applicable environmental laws.

“Feeder” means a low voltage or medium voltage line on a distribution network that is capable of supplying or absorbing at least **30kVA** of electricity in compliance with the Distribution Code.

“Fuel” means materials such as gas or diesel that are burned to produce electric or heat energy.

“Generation” means the production of electricity that is fed into an isolated mini-grid, an interconnected mini-grid, or directly to an end-use customer.

“Generation Capacity” means the aggregate power that a generation plant can produce at any point in time for at least (1) one hour under specified environmental constraints (temperature, humidity, etc.) with a power factor of **0.8** (inductive).

“Hosting Capacity Information” means feeder-level or network-level technical information published by a Distribution Licensee, in the form approved by the Commission, showing the indicative ability of a feeder or network segment to accommodate an interconnected mini-grid without material adverse effect on safety, stability, voltage, protection, or power quality.

“Independent Electricity Distribution Network” or **“IEDN”** means a distribution network not directly connected to a transmission system operated by the system operator. For the specific purpose of these Regulations, the term IEDN shall exclude mini-grids.

“Independent Electricity Distribution Network Operator” or **“IEDNO”** means the holder of an IEDN licence issued by the Commission.

“Interconnected mini-grid” means a mini-grid connected to, and operated in coordination with, a Distribution Licensee’s network, with installed capacity **up to 10 MW per site**.

“Isolated mini-grid” means a Mini-grid that supplies electricity independently of a Distribution Licensee’s network, with installed capacity of **up to 5 MW per site**.

“Licence” means a licence granted by the Commission under the Law.

“Licensee” means any person who holds a Licence issued by the Commission.

“Limited Export Interconnected Project” means an interconnected mini-grid permitted to export electricity to the Distribution Licensee’s network at the Point of Common Coupling, subject to a fixed approved maximum export limit.

“Managed Export Interconnected Project” means an interconnected mini-grid permitted to export electricity to the Distribution Licensee’s network at the Point of Common Coupling, subject to variables, time-varying, or dynamically controlled export limits, operating windows, communications requirements, or control instructions approved by the Commission

“Metering Code” means the Nigerian Metering Code approved by the Commission for use in measuring the flow of energy in transmission and distribution systems in Nigeria.

“Mini-Grid” means any electricity supply system with its own generation capacity supplying electricity to more than one customer and which can operate in isolation from, or be connected to, a Distribution Licensee’s network, and which falls within the capacity limits prescribed in these Regulations.

“Mini-Grid Developer” means a legal entity established under Plateau State law that has applied for registration or a permit with the Commission for the operation of an isolated or interconnected mini-grid.

“Mini-Grid Operator” means a person or an entity that is registered or issued a permit by the Commission for the operation of isolated or interconnected mini-grids.

“Mini-Grid Permit” or “Permit” means a permit granted by the Commission to a mini-grid operator.

“Mini-Grid Permit Holder” means a person who holds a mini-grid permit issued by the Commission for the operation of isolated or interconnected mini-grids.

“NESIS Regulation” means the Nigerian Electricity Supply and Installation Standards Regulation.

“Non-Export Interconnected Project” means an interconnected mini-grid permitted to import electricity from the Distribution Licensee but not permitted to export electricity to the Distribution Licensee’s network during normal operation, except expressly approved by the Commission

“Point of Common Coupling” or “PCC” means the electrically defined point at which an interconnected mini-grid connects to the Distribution Licensee’s network and at which the ownership, operational, protection, metering, and commercial boundaries of the interconnection are identified.

“Portfolio of Interconnected Mini-Grids” means a set of interconnected mini-grids as determined by the mini-grid developer, for which Tripartite Agreements with the same Distribution Licensee have been signed and filed simultaneously with the Commission for approval, subject to these Regulations.

“Portfolio of Isolated mini-grids” means a set of isolated mini-grids as determined by the mini-grid developer, which is filed with the Commission for approval simultaneously, subject to these Regulations.

“Registered Mini-Grid Operator” means a mini-grid developer that has completed the Commission’s registration process for the operation of one or more systems of less than **100kW** of Distributed Generation capacity per site.

“Registration” means filing with the Commission a registration form by a mini-grid developer for one or more systems of up to **100kW** of distributed power per site.

“Regulatory Jurisdiction” means a geographical area subject to the jurisdiction of a competent electricity regulator under applicable law.

“Short-Form System Impact Study Confirmation” means a written confirmation, in the standard template approved by the Commission, and issued by a Distribution Licensee for an applicable interconnected mini-grid project. The Short-Form SIS confirms that the proposed mini-grid project conforms to the applicable published Hosting Capacity Information, standard technical conditions, operating mode, and the project’s single-line diagram, prescribed in **Schedule 15** to these Regulations.

“Standard technical conditions” means the technical conditions prescribed in Schedule 15 to these Regulations for an

eligible interconnected solar photovoltaic and battery mini-grid seeking to rely on the simplified interconnection pathway.

“System Impact Study” means a detailed engineering assessment conducted to determine the technical effects of connecting a new generation source, load, or other electrical facility to an existing power system at the distribution level. The study evaluates how the proposed interconnection will affect the safety, reliability, stability, and operational performance of the network.

“Technical Codes” means the Grid Code, Distribution Code, Metering Code, Health & Safety Code, NESIS Regulation, and other codes approved by the Commission for the technical regulation of the Plateau State Electricity Supply Industry.

“Tripartite Agreement” means the contract executed by the interconnected mini-grid developer, Distribution Licensee and Connected Community and approved by the Commission.

“Underserved Area” means an area within a distribution licensee’s network with an existing but dysfunctional distribution system resulting in poor quality of supply.

“Unserved Area” means an area within a distribution licensee’s network without an existing distribution system, otherwise called off-grid.

Unless otherwise specified, in these Regulations: –

- a. Words importing any one gender include the other gender, and the singular includes the plural and vice versa;
- b. Words or expressions used in these Regulations but not defined shall have the same meanings respectively assigned to them in the Act.
- c. Any reference to a statute or statutory provision includes a reference to that provision as amended, re-enacted, or replaced, and any regulations or orders made under such provisions from time to time; and
- d. If the date on which an event is scheduled to occur by these regulations is a day which is not a business day, then the event shall be deemed to occur on the next business day.

Application and Scope of the Regulations

1. These Regulations shall apply to all isolated mini-grids with installed generation capacity of up to **5 MW** per site and to all

interconnected mini-grids with installed generation capacity of up to **10 MW** per site.

2. The rights and obligations of a mini-grid developer, permit holder, registered mini-grid operator, Distribution Licensee, connected community, and customer under these Regulations shall be applied in a proportionate manner, having regard to the type of mini-grid, installed capacity, interconnection configuration, and nature of the service provided.
3. Additional requirements applicable to mini-grids above **1 MW** shall apply only to the extent expressly stated in these Regulations, the applicable permit, or a Commission-approved template or guideline issued pursuant to these Regulations.
4. Nothing in these Regulations shall be construed as creating a separate licensing regime for mini-grids above **1 MW** where such mini-grids otherwise fall within the capacity thresholds prescribed in **subsection (1)** of this section.
5. A mini-grid permit holder shall not be required, under these Regulations, to obtain a duplicative permit, approval, technical study, inspection, or filing in respect of a purely intrastate mini-grid project within a State referred to in **subsection (5)** of this section where materially equivalent approval, study, inspection, or filing has already been accepted by the Commission, save to the extent reasonably necessary to address an inter-state, national-grid, federal-market, or other matter within the jurisdiction of the Commission.
6. To avoid duplication, conflicting obligations, or unnecessary cost to developers, the Commission may recognise, rely upon, or coordinate with approvals, studies, tests, inspections, standards, and filings accepted by a SERC, to the extent consistent with law, safety, reliability, and consumer protection.

CHAPTER-II

CLASSIFICATION AND DELINEATION OF MINI-GRIDS

i. Types of Mini-Grids

1. A Mini-grid may be an –
 - a. Isolated Mini-grid; or
 - b. Interconnected Mini-grid
2. A mini-grid shall have a dedicated power generation facility that provides electricity supply to its network, which may be operated by the mini-grid operator or a person contracted by the mini-grid operator to provide generation capacity to the mini-grid network.

Geographical Delineation of Mini-Grid Services Areas

1. The Commission may, upon consideration of an application filed by a mini-grid developer:
 - a. Grant a permit to construct, own, operate, or maintain an isolated mini grid in a designated unserved area.
 - b. Approve a tripartite agreement to construct, operate, and/or maintain an interconnected mini-grid in an underserved area within a geographical location.
2. All mini-grid developers applying for mini-grid permits shall file an application with the Commission providing information that includes:
 - a. Details of the generation system that shall supply the mini-grid network.
 - b. An accurate description of the proposed distribution network.
 - c. Geographical details of the network.
 - d. Any other information that the Commission may require.
3. The geographical depiction referred to in **sub-section (2)** of this section shall be in the format prescribed in **Schedule 3** to these Regulations or as requested by the Commission.
4. Where different feeders are being connected to the same generator, the Commission may:
 - a. define each feeder as a separate mini-grid; or
 - b. group all feeders as one mini-grid, provided that the aggregate power generated and distributed through the

feeders at a site shall not exceed the applicable capacity limit under **section 4** of these Regulations.

5. The Distribution licensee shall maintain and update a publicly accessible registry of areas classified as unserved or underserved for the purpose of these Regulations.
6. The registry under **subsection (5)** of this section shall, to the extent reasonably practicable, be cross-referenced with feeder identifiers, approved expansion plans, expected energisation windows, and Hosting Capacity Information (**HCI**) relevant to mini-grid planning.
7. Each distribution licensee shall publish, in a standard format approved by the Commission, HCI, feeder maps, an approved network expansion plan, and project status report as the Commission may direct for the purpose of enabling efficient mini-grid siting and development.

CHAPTER III

REGISTRATION, PERMITS, AND MANDATORY CONDITIONS

Permits for Isolated Mini-Grids

1. The Commission may grant a permit referred to in **section 6(1)** of these Regulations for an isolated mini-grid where the Applicant is in compliance with the following conditions:
 - a. The Applicant has complied with the requirements prescribed by the Commission for the grant of a permit in respect of the proposed location to be served by the mini-grid.
 - b. The proposed mini-grid is located in a designated unserved area and does not materially conflict with a Distribution Licensee's network expansion plan approved by the Commission. Provided that, where the proposed project area is expressly covered by a Performance Improvement Plan, investment plan, or other Commission-approved network expansion plan of the Distribution Licensee, the Applicant shall submit a written consent or no-objection of the Distribution Licensee; or
 - c. Where it is evident that the Distribution Licensee has not demonstrated, within the period prescribed in **subsection (2)** of this section, any committed financing, budgetary provision, procurement action, or other objectively verifiable implementation commitment sufficient to justify refusal, withholding, or delay of the permit; or
 - d. The intended geographic location has not been assigned to an Independent Electricity Distribution Network Operator (IEDNO), another mini-grid developer, or any other person authorised by the Commission to provide electricity service in that area; or
 - e. The Applicant has filed with the Commission an executed agreement between the community and mini-grid developer in the form prescribed in **Schedule 11** to these Regulations or in such other form as may be mutually agreed between the parties and accepted by the Commission; or
 - f. The Applicant has submitted verifiable coordinates for the geographic location of the proposed mini-grid, and the area

to be covered by its network, and has obtained all other permits, consents, and approvals required from the relevant authorities in respect of the location; or

- g. The proposed end-user tariff has been calculated in accordance with the mini-grid tariff model and approved by the Commission; and
 - h. The applicant has submitted the health, safety, and technical compliance information prescribed in **Schedule 6** of these Regulations and, where the proposed installed capacity exceeds **1 MW**, a simplified technical package consisting only of the single-line diagram, protection philosophy, basic equipment ratings, site layout, and such other proportionate technical information as the Commission may reasonably require, having regard to the size, technology, and risk profile of the project.
- 2. Any confirmation, objection, consent, or no-objection required from a Distribution Licensee under subsection **(1) (b)** of this section shall be addressed to the Managing Director of the Distribution Licensee and served at its headquarters, and the Distribution Licensee shall respond within fifteen **(15)** business days.
 - 3. Where the Distribution Licensee neglects, fails, or refuses to respond within the period specified in subsection (2) of this section, the Distribution Licensee shall be deemed to have issued a no-objection to the proposed isolated mini-grid for the purpose of these Regulations.
 - 4. Any objection raised by a Distribution Licensee under **subsection (1)(b)** of this section shall be in writing and shall contain:
 - a. identification of the exact project area covered by the approved expansion plan;
 - b. reference to the relevant approved plan, budget, procurement milestone, or implementation programme;
 - c. the planned commencement date;
 - d. the planned energisation or substantial completion date; and
 - e. such documentary evidence as the Commission may require.
 - 5. Where a Distribution Licensee has objected under subsection (1)(b) of this section, such objection shall lapse for the purpose of blocking a

mini-grid permit if:

- a. physical construction has not commenced within twelve (12) months of the date of the objection; or
 - b. energisation or substantial completion has not occurred within twenty-four (24) months of the date of the objection, unless the Commission, upon application supported by evidence of good cause, grants an extension.
6. In determining whether to grant an extension under **subsection (5)** of this section, the Commission shall have regard to the Applicant's interest, credible implementation progress, committed financing, force majeure, procurement delay beyond the reasonable control of the Distribution Licensee, and the need to avoid speculative reservation of project areas.
7. Nothing in this section shall prevent the Commission from granting a permit where it is satisfied that the proposed mini-grid better serves timely electrification, customer welfare, and efficient network development than the projected expansion relied upon by the Distribution Licensee.
8. In relation to an isolated mini-grid, the Commission may require only such incremental technical, environmental, financial, and commercial information as is reasonably necessary, having regard to the size, technology, location, and risk profile of the project.

Registration of Isolated Mini-Grids

The developer of an isolated mini-grid with a distributed power not exceeding 100kW may:

- a. apply for a permit referred to in section 6(1) of these Regulations in compliance with the procedures specified in section 7(1) of these Regulations, with all rights and obligations of a mini-grid permit holder as described under these Regulations; or
 - b. apply for registration using the form prescribed in Schedule 2 of these Regulations.

Interconnected Mini-Grids up to 10MW of Installed Generation Capacity

1. Where a mini-grid is interconnected, the duly authorised representatives of the community, the mini-grid developer, and the distribution licensee shall sign a Tripartite Agreement covering the transaction, and the Tripartite Agreement shall be filed with the

Commission.

2. The Commission may register the tripartite agreement and grant the mini-grid permit, where:
 - a. the retail tariff is determined in accordance with the mini-grid tariff model and agreed by the parties, subject to the Commission's approval;
 - b. the Interconnection agreement complies with the Technical Codes as applicable to the nature and size of the proposed interconnection;
 - c. the tripartite agreement contains the matters prescribed in **Schedule 10** of these Regulations; and
 - d. the connected community has provided its consent in the manner prescribed under these Regulations.
3. Every Distribution Licensee shall publish feeder-level HCI, in the form approved by the Commission, on its website and on such Commission-designated platform, for feeders on which interconnected mini-grids may be proposed and shall update same not less than once every twelve (12) months, and in any event, within sixty (60) days of any material feeder change, or within such other period as the Commission may direct.
4. The HCI published under subsection (3) of this section shall, at a minimum, identify the feeder's name or code, voltage level, supplying substation where applicable, indicative available capacity, unserved/underserved classifications, expected energization windows, and any known technical limitations, operating assumptions or standard interconnection conditions relevant to a mini-grid developer.
5. The HCI shall be indicative only and shall not of itself constitute an approval to connect, nor shall it relieve the mini-grid developer or the Distribution Licensee of the obligation to confirm project-specific compliance with applicable technical requirements.
6. The HCI issued or confirmed by a Distribution Licensee for the purpose of these Regulations shall remain valid for the period stated or, where no period is stated, for such period as the Commission may prescribe, unless a material change in feeder, network, loading, fault level, protection, or operating conditions occur before the expiry of that period.
7. Where a material change referred to in **subsection 9(6)** occurs, the Distribution Licensee shall, within five (5) business days notify the

Commission and any affected Applicant and shall state the nature of the change and whether such change materially affects the continued applicability of the previously issued Hosting Capacity Information.

8. For a proposed interconnected mini-grid above 1 MW, or for any interconnected mini-grid for which the Commission so directs, the mini-grid developer shall submit a System Impact Study (SIS) in the form prescribed by the Commission.
9. An SIS under **subsection (8)** of this section shall be limited to the matters reasonably necessary to assess safe interconnection and shall address only the proposed point of common coupling, feeder loading, voltage profile, short-circuit contribution, reverse power flow where applicable, power quality, protection coordination, metering arrangement, and any clearly identified reinforcement required for safe operation.
10. For the purpose of these Regulations, interconnected mini-grids with **1MW** or below, using solar photovoltaic, seeking to rely on the simplified interconnection pathway shall be assessed by reference to the applicable operating mode and the standard technical conditions prescribed in Schedule **15** to these Regulations.
11. Where the published HCI shows sufficient available capacity for the proposed interconnection, and the project conforms to the applicable standard technical conditions and operating mode prescribed in **Schedule 15** to these Regulations, the requirement for an SIS may be satisfied by a Short-Form SIS Confirmation issued based on the published feeder data, the project's single-line diagram, and the applicable operating assumptions.
12. The distribution licensee shall, within the timelines prescribed in **Schedule 5** to these Regulations:
 - a. acknowledge receipt of a technical and investment proposal;
 - b. provide the Hosting Capacity Information and the minimum project-specific network data reasonably required for the Short-Form SIS Confirmation or any other simplified interconnection review permitted under Schedule 15 to these Regulations;
 - c. confirm whether the proposed interconnection is acceptable as submitted, acceptable subject to specified conditions, or requires limited reinforcement or rectification; and

- d. where the distribution licensee rejects the submission, provide written reasons for such rejection within the applicable review period.
13. Any new technical requirement introduced after the expiry of the initial review period shall not be imposed on the Applicant except where such requirement is necessary for safety, protection, coordination, system integrity, or arises from a material network change not caused by the Distribution Licensee's delay or omission.
14. Where a distribution licensee fails to respond within the timeline applicable to a procedural step under **Schedule 5**, such failure shall constitute a deemed no-objection only in respect of that procedural step, but shall not amount to deemed energisation approval, safety clearance, protection waiver, or any other approval which, under these Regulations, requires technical confirmation or express authorization.
15. Where a failure referred to in subsection **9(14)** prevents the Applicant from progressing with the application, commissioning, energisation, or any other mandatory approval step under these Regulations, the Applicant may refer the matter to the Commission for direction.
16. Upon a referral under **subsection 9(15)**, the Commission may direct the distribution licensee to provide, within five (5) business days, the outstanding response, technical confirmation, objection, or other information necessary for the determination of the matter.
17. Where the distribution licensee fails to comply with a direction issued under **subsection 9(16)**, the Commission may, upon such terms as it considers necessary for safety, system integrity, and regulatory compliance, issue such further direction or interim determination as may be required to prevent undue delay or frustration of the application
18. Following completion of construction and submission of commissioning documentation, the distribution licensee shall issue energisation approval or state written technical reasons for withholding approval within fifteen (15) business days.
19. Any dispute regarding HCI, the scope or outcome of an SIS, required reinforcement, or refusal to interconnect shall be referred to the Commission for determination.

Application Procedure for a Mini-Grid Permit

1. The Commission may grant a permit where the conditions provided in

sections 7 and 9 of these Regulations are fulfilled by the applicant.

2. The Commission may issue a permit pursuant to **section 7** of these Regulations or register a tripartite agreement pursuant to **section 9** of these Regulations to an Applicant within a period not exceeding thirty (30) business days from the date on which the Applicant files an application that meets all the requirements.
3. The application proceedings in sections 7, 8, and 9 of these Regulations are described in Schedule 5, and where Schedule 5 deviates from these Regulations, these Regulations shall prevail.
4. A registered mini-grid operator who intends to operate as a mini-grid permit holder shall:
 - a. use the mini-grid tariff model or such other methodology as may be approved by the Commission, in the determination of the tariff;
 - b. be entitled to compensation upon grid arrival in accordance with Section 21 and Schedule 13 of these Regulations where applicable.

Amendments and Portfolio Filing for a Mini-Grid

1. Where a mini-grid registered or permitted under these Regulations proposes any expansion, design modification, change in technology, change in point of common coupling, or capacity increase, the mini-grid developer shall apply to the Commission for an amendment or conversion of its registration, permit, or approved tripartite agreement, as applicable.
2. In processing an amendment under **subsection (1)** of this section, the Commission shall require only incremental information reasonably necessary to assess the proposed change and may rely on information previously submitted and still valid.
3. A mini-grid developer may submit one application for a portfolio of mini-grid sites only where the sites are located within the same regulatory jurisdiction, and, in the case of interconnected mini-grids, are served by the same distribution licensee or such successor network operator as the Commission may approve.
4. Nothing in this section shall be construed to prevent the same developer from filing separate portfolio applications or site-specific applications in different regulatory jurisdictions.
5. A portfolio application under **subsection (3)** of this section may contain

similar developer, financing, application type, mini grid type, and contract information, provided that each site shall be supported by a separate site annex containing the site-specific technical, tariff, community, environmental, and geographic information required under these Regulations.

6. The Commission may issue a single decision on a portfolio application with separate site annexes and conditions, but no portfolio approval under these Regulations shall be construed as authorising a site outside the regulatory jurisdiction to which the decision relates.

General Obligations of the Mini-Grid Permit Holder

1. The mini-grid permit holder shall construct, operate, and/or maintain its distribution network in accordance with the relevant technical codes and standards.
2. The mini-grid permit holder shall comply with the Act, terms and conditions of the mini-grid permit, the Tripartite Agreement, the agreement with the community or connected community as applicable, customer contract, the rules and regulations, as well as the decisions, orders, and directions of the Commission.
3. The mini-grid permit holder shall comply with all other regulations issued by the Commission.
4. The mini-grid permit holder shall grant the Commission and its duly authorised representatives access to its sites and provide any information requested by the Commission.

Accounts of the Mini-Grid Permit Holder

1. The mini-grid permit holder shall:
 - a. maintain separate accounting records for the mini-grid business, including the business of utilising the assets of a Distribution licensee's network, in the prescribed form and contain such particulars as may be specified by the Commission and in accordance with the Companies and Allied Matters Act;
 - b. prepare from the records referred to in paragraph (a) of this regulation, accounting statements for each financial year comprising a profit and loss account and a balance sheet; and
 - c. ensure that the accounting statements prepared in accordance with the foregoing paragraphs are duly certified by an independent auditor in respect of each financial year, stating whether in the opinion of the auditor, the statement has been properly prepared and given a true and fair view of the revenue, costs, assets, liabilities and reserves reasonably attributable to the business to which the

statement relates.

Inspection of Accounts for Tariff Review and Determination of Depreciated Value

1. Any person authorised by the Commission shall be entitled to inspect and verify the accounts of a mini-grid permit holder at any reasonable time, and the mini-grid permit holder shall be under an obligation to render all necessary assistance and provide the required documents to the person authorised to inspect the accounts.
2. The mini-grid permit holder shall provide reports in the form prescribed in **Schedule 4** of these Regulations to the Commission for each mini-grid or a combined report for a portfolio of mini-grids at least once every year, except where a different frequency is prescribed by the Commission.
3. Where, following an inspection of accounts, the Commission proves that the actual costs incurred by the mini-grid permit holder exceed the approved range of benchmark costs in the tariff model or the actual revenues earned by the mini-grid permit holder deviates from the revenues stated when the application was filed shall, where:
 - a. the input parameters for tariff calculation using the mini-grid tariff model
it shall be adjusted to the actual values; and
 - b. the tariffs, as well as the calculation of the depreciated value, shall be adjusted and approved by the Commission accordingly.
4. The new tariffs, as adjusted in **section 14(3)** of these Regulations, shall be applied within **30** business days of approval by the Commission.
5. A mini-grid permit holder may request an account inspection by the Commission to update its tariffs and depreciated assets value by filing a formal request with the Commission.
6. A community or connected community may request an inspection of accounts of the mini-grid operator by the Commission for the purpose of triggering a review of its tariffs, including a review of the fair value of any addition and/or retirement of capital assets by filing a formal request with the Commission.

Transfer of the Mini-Grid Permit or Business

1. A mini-grid permit holder shall not, without the prior written consent of the Commission, transfer, assign, or sell to another person or in any other way dispose of all or any part of the permitted business carried

out under a mini-grid Permit granted by the Commission.

2. An application for consent under these Regulations shall be filed along with the following documents:
 - a. Application letter to the Commission seeking consent;
 - b. Certificate of incorporation, memorandum, and articles of association of the transferee;
 - c. Board resolution of the mini-grid permit holder approving the transfer to the transferee;
 - d. Board resolution of the transferee company accepting the transfer;
 - e. Original mini-grid permit certificate and terms and conditions issued to the mini-grid operator by the Commission; and
 - f. Documentary evidence of the technical capability or capacity of the transferee company to operate the mini-grid.

CHAPTER IV
TECHNICAL, OPERATIONAL, AND TRANSITIONAL REQUIREMENTS FOR
MINI-GRIDS

Design, Construction, Operation, and Maintenance of the Mini-Grid Operated Under a Permit

1. The mini-grid permit holder shall design, construct, commission, operate, or maintain and decommission its distribution network and related facilities in compliance with the Technical Codes and Standards, terms and conditions of its permit and Tripartite Agreement as applicable, and in accordance with any other standards of design, construction, and maintenance as prescribed by the Commission.
2. Where there is any inconsistency between these Regulations and the Technical Codes and Standards, the provisions of the Technical Codes shall prevail to the extent of the inconsistency.
3. The registered mini-grid operator is not bound by the Technical Codes and Standards for design, construction, commissioning, operation, and maintenance of its distribution systems, but may apply the minimum technical requirements prescribed in these Regulations and any applicable directive of the Commission.
4. A mini-grid permit holder shall design, construct, commission, operate, maintain, and decommission its generation, storage, distribution, interconnection, and customer-side installations in compliance with the Technical Codes, and such additional standards as may be expressly approved by the Commission.
5. The Commission shall apply technical requirements under **Schedule 15** to these Regulations, the applicable interconnection agreement, the Metering Code, the Distribution Code, and such project specific technical conditions as may be approved by the Commission.
6. For interconnected mini-grids above **1 MW**, the permit holder shall comply with the additional metering, protection, communication, and operational coordination requirements expressly stated in the permit's terms and conditions, the Tripartite Agreement in Schedule 10, and such project-

specific technical conditions as may be approved by the Commission.

Quality of Service

1. Every mini-grid permit holder shall provide electricity service in accordance with these Regulations, the applicable permit, the applicable customer contract, and any minimum technical and service standards prescribed by the Commission.
2. Every mini-grid permit holder shall prepare, maintain, and make publicly available to its customers a customer service charter stating, at a minimum:
 - a. billing frequency and payment channels;
 - b. the treatment of meter failure, missing meter data, and estimated billing;
 - c. Distribution licensee connection and reconnection rights and procedures;
 - d. complaint channels and escalation procedures;
 - e. planned and forced outage communication arrangements; and
 - f. service-restoration expectations applicable to the site.
3. The customer service charter under **subsection (2)** of this section shall be provided to each customer before connection and shall be kept available at the project site, business office, customer service point, and any digital platform used by the permit holder for customer communication.
4. The Commission may prescribe minimum service-quality benchmarks, differentiated by mini-grid type, installed capacity, technology, remoteness, and approved service profile.

Health and Safety

All mini-grid operators shall apply the safety guidelines as described in Schedule 6 of these Regulations for the design, construction, commissioning, operation, and maintenance of their generation and distribution assets.

Environmental Protection

1. A mini-grid developer registered as a mini-grid operator, or mini-grid permit holder, shall comply with all applicable environmental laws, regulations, permits, approvals, and directives issued by the competent

environmental authority.

2. For a solar photovoltaic or battery-supported mini-grid of up to **10 MW**, the Commission shall require evidence of environmental screening and an Environmental and Social Management Plan (ESMP). A full Environmental and Social Impact Assessment (ESIA) shall not be required solely by reason of installed generation capacity within this threshold. Where the competent environmental authority requires a different pathway for a specific project, the mini grid developer shall request written reasons based on site-specific environmental or social circumstances.
3. A full ESIA shall be required where the proposed project involves hydro, biomass, thermal generation, resettlement, material land-use impact, or otherwise subject to special environmental controls under applicable law, including protected areas, restricted areas, forest reserves, wetlands, national parks, cultural heritage areas, flood-prone areas, coastal protection zones, or such other areas as may be identified, or any circumstance for which the competent environmental authority requires an ESIA.
4. Every permit holder shall implement appropriate waste management, battery handling, occupational health and safety, fire safety, spill prevention, and community grievance procedures proportionate to the technology and size of the project.
5. No mini-grid shall commence commercial operation unless the developer has submitted to the Commission evidence of compliance with the environmental pathway applicable to that project.

Customer Connection, Metering, and Billing

1. The mini-grid permit holder shall enter into the standardised connection agreements as prescribed in **Schedule 12** of these Regulations with any customer who accepts to connect to the mini-grid.
2. The mini-grid permit holder shall maintain and disclose a customer charter covering minimum service profile, billing frequency, meter-failure treatment, Distribution licensee connection and reconnection rights, outage communication, complaint channels, and service-restoration expectations.
3. The provisions of the Metering Code shall apply to all mini-grid installations operated under these Regulations, except where specific derogation is given by the Commission to adopt other standards outside

the Metering Code or pending a review of the Metering Code.

4. The Commission may, at the request of the mini-grid operator, grant a derogation from **sub-section (2)** of this regulation where it deems fit.
5. The tariff and billing model for mini-grids operated under a permit shall be described in the contract between the mini-grid operator and the customers in the community, as prescribed in **Schedule 12**.

Grid Arrival, Transition, and Compensation

1. A mini-grid permit holder shall only operate in the defined geographical area approved by the Commission in its permit or Tripartite Agreement.
2. Where a Distribution Licensee intends to extend its network to an isolated mini-grid operated under a permit, the Distribution licensee shall notify the mini-grid operator in writing no later than twelve (12) months before the grid extension is expected to reach the isolated mini-grid.
3. Where a Distribution Licensee extends its distribution network to an area served by an isolated mini-grid operated under a mini-grid permit, the mini-grid permit holder and the Distribution Licensee shall, within this notification period or such shorter period as the Commission may approve, negotiate in good faith one of the following transition arrangements:
 - a. apply to continue operations by converting the isolated mini-grid into an interconnected mini-grid in accordance with **Section 9** of these Regulations;
 - b. transfer all the distribution assets of the mini-grid to the Distribution Licensee or another approved operator;
 - c. continued operation of the mini-grid under a service, franchise, energy supply, or other commercial arrangement agreed by the parties and approved by the Commission, where required;
 - d. orderly decommissioning and exit in accordance with an approved transition plan or

- e. adopt such other transition arrangement as the Commission may approve.
4. Where the parties do not reach an agreement under **subsection (3)** of this section within sixty (**60**) business days, either party may refer the matter to the Commission for the purpose of determining the transition arrangement, having regard to continuity of service, prudent investment, customer protection, and the efficient development of the network.
5. Where assets are transferred pursuant to subsection (**3**)(**b**) of this section, compensation shall be determined in accordance with the following principles:
- a) base compensation shall be the Compensable Transfer Value of the prudent and efficiently incurred use and useful assets for the mini-grid, together with approved preservation, handover, removal, reinstatement, decommissioning, and other transition costs;
 - b. or the purposes of paragraph (a) of this subsection, the Compensable Transfer Value shall be the higher of:
 - i. the verified indexed historical cost of the compensable assets, net of accumulated depreciation and net of excluded contributions; and
 - ii. the verified net depreciated replacement cost of the compensable assets, in each case as determined in accordance with **Schedule 13** and approved by the Commission;
 - a) where grid arrival and transfer of assets occur:
 - i. within the first five (**5**) years of the commercial operation date of the mini-grid, the compensation payable shall include, in addition to the amounts provided in paragraphs (**a**) and (**b**) of this subsection, the verified development and construction costs not otherwise recovered, together with an amount equal to the revenue generated by the mini-grid during the twelve (**12**) months immediately preceding the date of transfer;

- ii. after the fifth anniversary but before the tenth anniversary of the commercial operation date of the mini-grid, the compensation payable shall include, in addition to the amounts provided in paragraphs (a) and (b) of this subsection, an amount equal to the revenue generated by the mini-grid during the twelve (12) months immediately preceding the date of transfer;
 - iii. on or after the tenth anniversary of the commercial operation date of the mini-grid, compensation shall be limited to the amounts provided in paragraphs (a) and (b) of this subsection, unless the Commission determines that exceptional unrecovered prudent capital remains and that additional protection is necessary in the interest of fairness and investment stability;
 - a. grant-funded, donor-funded, customer-funded, salvaged, written-off, or otherwise non-compensable assets or amounts shall be excluded or separately treated only to the extent required by the applicable funding agreement, donor conditions, or a direction of the Commission; and
 - b. compensation under this subsection shall not include speculative future profits, anticipated revenue not yet accrued, or any value attributable to assets or expenditures that were not prudent, were not efficiently incurred, or were not used and useful for the mini-grid.
6. In determining the compensation payable under **subsection (5)** of this section, the Commission shall have regard to:
- a. the approved tariff model and depreciation profile;
 - b. the date of commissioning and the period of operation prior to grid arrival;
 - c. the extent of capital already recovered;
 - d. the residual useful life of the assets;
 - e. any approved minimum protected tenure, amortisation milestone, or contractual protection period; and
 - f. The need to ensure fair compensation without awarding unearned profits.

7. The compensation statement shall be documented in the form prescribed in Schedule 13 to these Regulations; shall state each component of compensation approved under **subsection (5)** of this section, and shall be filed with the Commission for approval.
8. The Commission may direct that compensation be paid in one sum within the period specified in the approved transition arrangement or, where none is specified, within thirty (30) days of approval, failing which interest shall accrue at the rate directed by the Commission.
9. The Commission may also direct that compensation be paid in instalments, provided that any instalment arrangement shall be clearly documented, time-bound, and adequate to preserve the bankability of the mini-grid project.
10. A mini-grid permit holder shall, subject to safety and any direction of the Commission, be entitled to continue operating in accordance with its permit pending:
 - a. approval of the transition arrangement; and
 - b. payment, or a legally binding provision for payment of the approved compensation.
11. Upon expiration or termination of a Tripartite Agreement for an interconnected mini-grid, and where the contract is not renewed, the reintegration of the interconnected mini-grid into the Distribution Licensee's network shall be subject to the transition and compensation provisions contained in the Tripartite Agreement and, to the extent not provided in this section.
12. Where a Distribution Licensee extends its distribution network to an area covered by a registered mini-grid, the registered mini-grid operator shall, upon request of the Distribution Licensee and subject to any direction of the Commission, decommission and remove its assets or enter into such alternative transition arrangement as may be approved by the Commission.
13. Unless otherwise mutually agreed in a Commission-approved Tripartite Agreement or transition arrangement, the mini-grid operators and Distribution Licensee shall abide by the compensation and transition procedure prescribed in section 21(5) and Schedule 13 of these Regulations.

Monitoring, Evaluation, and Reporting

1. The Commission shall conduct regular monitoring and evaluation of activities of the mini-grid to ensure compliance with the Regulations, sustainability, and enhance data-driven electrification planning.

2.. The mini-grid operator shall file with the Commission a report of its monitoring and evaluation (“M&E”) activities in compliance with the M&E reporting template in **Schedule 4**, or in accordance with the terms and conditions of the permit and/or registration. The required information shall be filed in hard copy or through digital platforms approved by the Commission.

3..The mini-grid operator shall file with the Commission an annual operational and commercial report of all its registered and permitted capacity less than **1MW**.

4..The mini-grid operator with capacity above **1MW** shall file with the Commission a quarterly operational and commercial report for all its mini-grids, or as may be required by the Commission.

Every mini-grid and interconnected mini-grid shall file milestone reports during development and construction, including, where applicable, financial clause or committed financing, procurement of principal equipment, commencement of site works, completion of construction, commissioning, energization, and commercial operation.

The Commission may prescribe a standardized reporting data set differentiated by project type, installed capacity, interconnection configuration, and market relevance.

The Commission may publish aggregated market data on permits, registrations, exclusivity status, HCI publication status, development progress, operational status, and other information as may support sector visibility and data-driven planning.

CHAPTER V TARIFFS AND COMMERCIAL ARRANGEMENTS

Determination of Tariffs and Other Charges

1. The mini-grid tariff model included in Schedule 14 of these Regulations and approved by the Commission shall be used to determine the retail tariffs and other charges for a mini-grid permit.
2. For the purpose of **subsection (1)** of this section, the default benchmark assumptions shall be:
 - a. allowable technical losses shall not exceed four percent (4%) and;
 - b. allowable non-technical losses shall not exceed three percent (3%).
3. Notwithstanding subsection (2) of this section, the Commission may approve a project-specific initial loss allowance above the default benchmark for mini-grids, where justified by the location, remoteness, inherited asset condition, line length, customer density, brownfield conversion, metering status, or other demonstrable project characteristics.
4. Any project-specific loss allowance approved under **subsection (3)** of this section shall:
 - a. be stated expressly in the tariff model;
 - b. be based on evidence submitted by the Applicant and such independent verification as the Commission may require;
 - c. distinguish between technical and non-technical losses; and
 - d. include a phased reduction trajectory toward the applicable long-run target.
5. Unless otherwise approved by the Commission for good cause shown, any project-specific higher loss allowance approved under subsection (3) of this section shall not exceed:
 - a. Eight percent (8%) for technical losses; and
 - b. Five percent (5%) for non-technical losses,

And shall be reduced over a period not exceeding thirty-six (36) months from the commercial operation date or such other period as the Commission may approve.

6. A mini-grid permit holder may;

- a. file a single tariff application for all sites under a portfolio of isolated mini-grids or a portfolio of interconnected mini-grids;
 - b. file an individual tariff application for each site under such portfolio.
7. The tariff control period in the mini-grid tariff model shall be 5 years unless otherwise approved by the Commission for a specific project or class of projects.
8. The registered mini-grid operator may decide to determine retail tariffs and other charges by:
 - a. the use of the mini-grid tariff model in **Schedule 14** of these Regulations; or
 - b. An agreement between the mini-grid operator and the community, represented by customers consuming not less than **60%** of the electrical output of the mini-grid.
9. Any tariff agreement under **subsection (8)(b)** of this section shall be subject to the Commission's power under **section 14** of these Regulations to inspect accounts and review tariffs for equity, fairness, affordability, and cost reflectivity.
10. The executed agreement referred to in **subsection (8)(b)** of this section shall be filed with the Commission for record, review, and regulatory oversight.

Commercial Arrangements

1. The tariff payable by mini-grid customers for electricity supplied by an Isolated mini-grid or an Interconnected mini-grid shall be determined in accordance with these Regulations, the applicable mini-grid tariff model approved by the Commission, and **Schedule 14** to these Regulations.
2. Without prejudice to **subsection (1)** of these Regulations, an Interconnected mini-grid may be subject to commercial arrangements between the Interconnected mini-grid operator and the Distribution Licensee in respect of:
 - a. the takeover, use, operation, rehabilitation, or upgrade of Distribution Licensee network assets within the designated

- Interconnected mini-grid area;
- b. the supply of electrical energy by the Distribution Licensee to the Interconnected mini-grid at the Point of Common Coupling; and
 - c. such other Commission-approved commercial terms as may be necessary for the safe, efficient, and bankable operation of the Interconnected mini-grid.
3. The commercial arrangement under subsection (2) of these Regulations may include
 - a. Network Asset Use Fee;
 - b. Cost of Energy charge; and
 - c. any other charge expressly approved by the Commission and provided for in the applicable Tripartite Agreement, Interconnection Agreement, or Power Purchase Agreement.
 4. The Network Asset Use Fee shall be the periodic charge payable by the Interconnected mini-grid operator to the Distribution Licensee for the takeover and use of Distribution Licensee network assets within the designated Interconnected mini-grid area and shall be determined in accordance with **Schedule 8** to these Regulations.
 5. The Cost of Energy shall be the variable charge payable by the Interconnected mini-grid operator for electrical energy delivered by the Distribution Licensee to the Interconnected mini-grid at the Point of Common Coupling (PCC) and shall be determined in accordance with Schedule 8 to these Regulations.
 6. The applicable Network Asset Use Fee, Cost of Energy, and any other approved commercial terms shall be expressly stated in the Tripartite Agreement and Interconnection Agreement approved by the Commission.
 7. Except as otherwise approved by the Commission, the Network Asset Use Fee shall not include operating expenditure attributable to the provision of retail service within the designated Interconnected mini-grid area.
 8. An Interconnected mini-grid with installed capacity of not less than

one megawatt (**1 MW**), and such smaller capacity as the Commission may approve, shall have the right to apply for export capability at the PCC.

9. Upon receipt of an application under subsection (8) of this section, the Distribution Licensee shall, within thirty (**30**) business days:
 - a. approve the request;
 - b. approve the request subject to stated technical, protection, metering, or settlement conditions; or
 - c. reject the request on documented technical, safety, reliability, operational, protection-coordination, or market-settlement grounds.
10. A rejection under **subsection (9)(c)** of this section shall:
 - a. be communicated in writing;
 - b. identify the specific technical or commercial barrier leading to the rejection;
 - c. state whether the barrier is temporary or permanent, and the corrective action needed.
 - d. be subject to review by the Commission upon appeal by the IMG operator.
11. Where bidirectional energy flow at the PCC has been technically approved, the technical and commercial terms governing export of electricity by the mini-grid operator to the Distribution Licensee shall be governed by **Schedule 8**, the applicable Interconnection Agreement, and any Commission-filed or Commission-approved Power Purchase Agreement or other agreement required by the Commission.
12. Where the parties do not agree on an export tariff or export settlement methodology within thirty (**30**) business days after technical approval of export capability, the default export pricing and settlement methodology prescribed in Schedule 8 to these Regulations shall apply unless otherwise directed by the Commission.
13. Approval of bidirectional flow or export capability at the PCC shall not, by itself, authorize the mini-grid operator to supply electricity to an off-taker outside the connected community or outside the

designated tripartite service area, and any such arrangement shall be subject to applicable law and such separate approval, metering, settlement, wheeling, customer-protection, and commercial requirements as the Commission may prescribe.

14. Billing, metering, settlement, estimation, reconciliation, audit, record-keeping, and any annual reconciliation of MYTO-linked commercial components in respect of an Interconnected mini-grid commercial arrangement shall be undertaken in accordance with:
 - a. **Schedule 8** to these Regulations;
 - b. the Metering Code, Distribution Code, and such other applicable codes and standards; and
 - c. the applicable Tripartite Agreement, Interconnection Agreement, Power Purchase Agreement, and any other Commission-approved settlement arrangement.
15. The Commission may approve departures from the default commercial methodology prescribed in Schedule 8 to these Regulations where special project circumstances, network conditions, public interest considerations, or market integration requirements justify such departure.

CHAPTER VI MISCELLANEOUS

Site Exclusivity for Project Development

1. A Community and the Distribution Licensee may grant a mini-grid developer an exclusive right of up to twelve (12) months to develop a mini-grid project as in **Schedule 1** of these Regulations.
3. A mini-grid developer may request the Community and the Distribution Licensee for an extension of the exclusivity period beyond the initial twelve (12) months, and the Commission may grant an additional period of up to twelve (12) months upon demonstration of continued technical, financial, regulatory, or commercial progress.
4. The mini-grid developer shall file the exclusivity agreement and the

extension to the Commission for registration upon execution by the parties:

1. The exclusivity agreements granted by the community and the Distribution Licensee to a particular developer shall not be transferable to another developer.
2. No exclusivity agreement filed with the Commission shall be registered unless it is accompanied by the following documentation, submitted simultaneously with the exclusivity agreement:
 - a. a duly executed exclusivity agreement in the form prescribed in Schedule 1, as applicable or as amended by the parties, including a mandatory addendum to the schedules of a written consent form signed by the authorized community representative, including the District Head of the Community.
 - b. the entire boundary coordinates of the location intended for the exclusivity;
 - c. evidence of community engagement comprising, at minimum, minutes of at least one formal community meeting with clear pictures, attended by traditional leadership, community representatives, and the mini-grid developer, signed by the community leadership and the developer;
 - d. the technical capacity of the developer to implement the project, which may include company profile, evidence of prior mini-grid deployments, technical partnership agreements, or other instruments acceptable to the Commission; and
 - e. project timeline with specific milestones for the exclusivity period.
3. The Community or the Distribution Licensee may request the developer to provide proof of its commitment, e.g., a Letter of Intent (“LoI”) from an investor, and shall be submitted to the Commission.
5. The Commission shall not grant a mini-grid permit to a mini-grid developer for any site where an exclusivity agreement or tripartite agreement has been executed in respect of that site by a different mini-grid developer and registered with the Commission for the duration of

the exclusivity arrangement.

- i Notwithstanding the right granted in subsection (1)(a) of this section, the distribution licensee shall retain the right to extend its network to the community, subject to these Regulations.
- ii An application fee shall be payable to the Commission at the time of filing the initial and supplementary periods, at the rate prescribed by the Commission from time to time. Where a developer files a portfolio of exclusivity agreements simultaneously, a separate application fee shall be payable for each site.
- iii A community shall not, during the subsistence of a registered exclusivity agreement, grant an exclusivity right or enter into any agreement, whether adapted as an exclusivity agreement, letter of intent, memorandum of understanding, or any other instrument, with any other developer in respect of the same site. Any such agreement entered into in contravention of this sub-section shall be null and void and of no legal effect.
- iv The Commission shall not register any exclusivity agreement in respect of a site for which a valid registered exclusivity agreement exists in favour of another developer, regardless of any subsequent community resolution to revoke the earlier agreement, except in accordance with the termination procedures provided under Clause 8 of the applicable Schedule 1.
- v A developer holding a registered exclusivity agreement shall file with the Commission a progress report for each site under exclusivity, not later than 6 months from the date of registration. The progress report shall contain:
 - a. a summary of all development activities undertaken since registration, including demand enumeration, technical feasibility assessments, and community engagement activities;
 - b. documented evidence of community engagement sessions conducted during the period, each accompanied by

- attendance lists signed by the community representative;
 - c. updated evidence of investor or financing commitment, where applicable;
 - d. procurement and supply chain status, where applicable;
 - e. the developer's revised project timeline with specific milestones for the remaining exclusivity period.
- vi Failure to file the progress report by the prescribed deadline in subsection 12 shall be treated as a basis for the Commission to review the status of the exclusivity registration and may constitute grounds for revocation of the exclusivity.
 - vii The Commission shall maintain a publicly accessible exclusivity registry containing, for each registered exclusivity agreement, the developer's name, the community's name, the Local Government Area and State, and the coordinates of the site.
 - viii No developer shall approach, negotiate with, or enter into any agreement with a community or any of its representatives in respect of a site for which a valid registered exclusivity agreement exists in favour of another developer.
 - ix Where the Commission's investigation reveals that a new developer has encroached upon a site for which a valid registered exclusivity exists, the Commission shall:
 - a. issue a notice of breach to the encroaching developer requiring the developer to immediately cease all engagement with the community concerned;
 - b. bar the encroaching developer from registering any new exclusivity agreement or permit application for a period not exceeding twelve (12) months from the date of the notice of breach, depending on the severity of the infraction; and

Rectification of Non-Compliance with a Mini-Grid Permit.

1. Where the Commission, on the basis of material evidence in its possession is satisfied that the mini-grid operator has contravened, or is likely

to contravene, the terms and conditions of the mini-grid permit or Tripartite Agreement as applicable, it shall serve a notice on the mini-grid operator to do, or refrain from doing anything specified in the notice, to rectify or avoid any contravention or threatened contravention of any term or condition of the permit or Tripartite Agreement as applicable.

3. The notice referred to in this section shall specify the period within which the mini-grid operator shall rectify or avoid the contravention or threatened contravention of any term or condition of the mini-grid permit or Tripartite Agreement as applicable.
4. Failure to comply with the directives in the notice of rectification shall attract applicable sanctions from the Commission.

Proceedings before the Commission

All proceedings before the Commission under these Regulations shall be governed by the Business Rules of the Commission.

Customer Complaints Procedure

All customer complaints shall be resolved in accordance with the Complaints Procedure Guidelines in **Schedule 9**.

Dispute Resolution

1. All Disputes arising under these regulations shall, in the first instance, be resolved by the parties through mutual negotiations within a period of thirty (30) days from the date the dispute arises. Parties can mutually agree to extend the negotiation period.
2. Where the parties fail to resolve the dispute within the specified period, the matter shall be referred to the Commission for final adjudication.

Amendment or Repeal

The Commission may amend or repeal, in whole or in part, the provisions of these Regulations.

Dated this _____ day of _____ 2026